

## FIFTH SCHEDULE

[Article 38(1)]

*The Conference of Rulers*

1. The Conference of Rulers shall, subject to the following provisions of this Schedule, consist of Their Royal Highnesses the Rulers and the Yang di-Pertua-Yang di-Pertua Negeri of States not having a Ruler.
  2. The place of His Royal Highness the Ruler of any State or the Yang di-Pertua Negeri of any State as a member of the Conference of Rulers may in any case in which the Constitution of that State so provides be taken by such person as that Constitution may provide.
  3. The Conference of Rulers shall have a Rulers' Seal, which shall be kept in the custody of a person appointed by the Conference.
  4. The person appointed under section 3 shall be known as the Penyimpan Mohor Besar Raja-Raja (Keeper of the Rulers' Seal), shall act as secretary to the Conference of Rulers and shall hold his office at the pleasure of the Conference.
  5. A majority of the members of the Conference of Rulers shall form a quorum and, subject to the provisions of this Constitution, the Conference may determine its own procedure.
  6. The Keeper of the Rulers' Seal shall convene the Conference of Rulers whenever required to do so by the Yang di-Pertuan Agong or by not less than three members of the Conference and, without being so required, not later than four weeks before the expiry of the term of office of the Yang di-Pertuan Agong and whenever a vacancy occurs in that office or in the office of the Timbalan Yang di-Pertuan Agong.
  7. The Yang di-Pertua-Yang di-Pertua Negeri of States not having a Ruler shall not be members of the Conference of Rulers for the purposes of any proceedings relating to the election or removal of the Yang di-Pertuan Agong or the election of the Timbalan Yang di-Pertuan Agong or relating solely to the privileges, position, honours and dignities of Their Royal Highnesses or to religious acts, observances or ceremonies.
  8. In any case where the Conference of Rulers is not unanimous it shall take its decision by a majority of the members voting, subject however to the provisions of the Third Schedule.
  9. Any consent, appointment or advice of the Conference of Rulers required under this Constitution shall be signified under the Rulers' Seal; and where, in the case of any proposed appointment, a majority of the members of the Conference have indicated, by writing addressed to the Keeper of the Rulers' Seal, that they are in favour of the appointment, he shall so signify the advice of the Conference without convening it.
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# *Federal Constitution*

## *NOTES*

### **Fifth Schedule**

*See* Art. 160(2) definition of “Ruler”.

#### *Sections 1 & 7*

The words “States not having a Ruler” substituted for the words “Malacca and Penang” by Act 26/1963, section 6, in force from 16-09-1963.

#### *Section 1*

- a. The words “Their Royal Highnesses” substituted for the words “Their Highnesses” by Act A31, section 2, in force from 24-03-1971.
- b. The words “Yang di-Pertua-Yang di-Pertua Negeri” substituted for the word “Governors” by Act A514, paragraph 19(1)(a), in force from 27-08-1976.

#### *Section 2*

- a. The words “His Royal Highness” substituted for the words “His Highness” by Act A31, section 2, in force from 24-03-1971.
- b. The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.

*Section 3: See* section 4.

#### *Section 6*

The words “Timbalan Yang di-Pertuan Agong” substituted for the words “Deputy Supreme Head of the Federation” by Act A354, section 11, in force from 27-08-1976.

#### *Section 7*

1. The words “Timbalan Yang di-Pertuan Agong” substituted for the words “Deputy Supreme Head of the Federation” by Act A354, section 11, in force from 27-08-1976.
2. The words “Yang di-Pertua-Yang di-Pertua Negeri” substituted for the word “Governors” by Act A514, paragraph 19(1)(a), in force from 27-08-1976.
3. The words “Their Royal Highnesses” substituted for the words “Their Highnesses” by Act A31, section 2, in force from 24-03-1971.

**SIXTH SCHEDULE**

[Articles 43(6), 43B(4), 57(1A)(a),  
59(1), 124, 142(6)]

***Forms of Oaths and Affirmations*****1. *Oath of Office and Allegiance***

“I, ....., having been elected (or appointed) to the office of .....do solemnly swear (or affirm) that I will faithfully discharge the duties of that office to the best of my ability, that I will bear true faith and allegiance to Malaysia, and will preserve, protect and defend its Constitution.”

(NOTE—A judge of the Federal Court, other than the Chief Justice, a judge of the Court of Appeal or of a High Court or a judicial commissioner shall use the words “my judicial duties in that office” in place of the words “the duties of that office”.)

**2. *Oath as Member of Parliament and of Allegiance***

“I, ....., having been elected (or appointed) as a member of the House of Representatives (or the Senate) do solemnly swear (or affirm) that I will faithfully discharge my duties as such to the best of my ability, that I will bear true faith and allegiance to Malaysia, and will preserve, protect and defend its Constitution.”

**3. *Oath of Secrecy***

“I ....., do solemnly swear (or affirm) that I will not directly or indirectly communicate or reveal to any person any matter which shall be brought under my consideration or shall become known to me as ..... except as may be required for the due discharge of my duties as such or as may be specially permitted by the Yang di-Pertuan Agong.”

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**SEVENTH SCHEDULE**

[Article 45]

***Election of Senators*****1. (1) *(Repealed).***

(2) As often as there is a vacancy among the members elected to the Senate by a State the Yang di-Pertuan Agong shall give notice to the Ruler or Yang di-Pertua Negeri of the State that an election of a Senator is required, and the Ruler or Yang di-Pertua Negeri shall require the Legislative Assembly to elect a Senator as soon as may be.

# *Federal Constitution*

## *NOTES*

### **Sixth Schedule**

1. The note which appears after paragraph 1 was added by Act 26/1963, section 70, in force from 16-09-1963, which also substituted the word “Malaysia” for the words “the Federation of Malaya” in paragraphs 1 and 2.
2. *See* Art. 159(4)(a) & 160(4).
3. In the note to paragraph 1, the words “Federal Court, other than the Chief Justice, a judge of the Court of Appeal or of a High Court, or a judicial commissioner” substituted for the words “Supreme Court, other than the Lord President, or a judge of a High Court” and the words “or any other” deleted by Act A885, section 43, in force from 24-06-1994.

### **Seventh Schedule**

#### **PART I**

*See* Art. 54(3) & 159(4)(a).

#### *Subsection 1(1)*

This subsection was repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“1. (1) As soon as may be after the dissolution of the Legislative Council the Yang di-Pertuan Agong shall give notice to the Ruler or Governor of each State that an election of Senators is required and the Ruler or Governor shall require the Legislative Assembly to elect Senators as soon as may be.”.

#### *Subsection 1(2)*

1. *See* section 5.
2. The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.

*Subsection 2(1): See* section 3.

2. (1) The names of candidates for election shall be proposed and seconded by members of the Assembly and the member proposing or the member seconding shall submit a statement in writing, signed by the person nominated, that he is willing to serve as a Senator if elected.

(2) When all the nominations have been received, the presiding officer shall announce the names of the persons nominated in alphabetical order and shall then put their names to the vote in that order.

(3) Each member present shall be entitled to vote for as many candidates as there are vacancies to be filled, and the names of the members voting for each candidate shall be recorded; and if any member casts a vote in addition to those allowed by this subsection that vote shall be void.

(4) The presiding officer shall declare to be elected the candidate or candidates who receive the largest number of votes, but if two or more candidates have an equal number of votes and the number of those candidates is larger than the number of vacancies to be filled, the election of those candidates shall be determined by lot.

3. Notwithstanding anything in section 2, if a vacancy due to the expiry of the term of office of a Senator is to be filled at the same meeting as a vacancy arising in any other way there shall first be an election to fill the vacancy due to the expiry of the term and then a separate election to fill the other vacancy.

4. The presiding officer shall certify to the Clerk to the Senate, by writing under his hand, the name of a person elected as Senator in accordance with the provisions of this Schedule.

5. If any question arises whether a member of the Senate has been duly elected in accordance with the provisions of this Schedule, the decision of the Senate shall be taken and shall be final, but the failure to hold an election under subsection 1(2) as soon as may be shall not of itself invalidate the election of any Senator.

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## EIGHTH SCHEDULE

[Article 71]

### *Provisions to be inserted in State Constitutions*

#### PART I

#### FINAL PROVISIONS

##### *Ruler to act on advice*

1. (1) In the exercise of his functions under the Constitution of this State or any law or as a member of the Conference of Rulers the Ruler shall act in accordance with the advice of the Executive Council or of a member thereof acting under the general authority of the Council, except as otherwise provided by the Federal Constitution or the State Constitution; but shall be entitled, at his request, to any information concerning the government of the State which is available to the Executive Council.

# *Federal Constitution*

## *NOTES*

### **Seventh Schedule—(cont.)**

#### *Section 5*

The words “, but the failure to hold an election under section 1(2) as soon as may be shall not of itself invalidate the election of any Senator” were inserted by Act 31/1965, subsection 2(2), in force from 01-07-1965.

#### **PART II**

#### *Sections 6 & 7*

1. These sections were repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“6. The term of office of one of the two Senators elected at the first election held in accordance with the provisions of this Schedule shall be three years, and the Senator whose term is six years shall, if both receive the same number of votes, be determined by lot and shall otherwise be the one who receives the greater number of votes.

7. Of the persons first appointed to be Senators eight shall be appointed for a term of three years.”.
2. The headings “*Election and Retirement of Senators*” and “PART I” were deleted by Act A1130, paragraph 13(a), in force from 28-09-2001.
3. The heading of “*Election of Senators*” substituted for the heading “ELECTION OF SENATORS” by Act A1130, paragraph 13(b), in force from 28-09-2001.
4. Part II was deleted by Act A1130, paragraph 13(c), in force from 28-09-2001.

### **Eighth Schedule**

See Art. 160(2) definitions of “Enactment” and “Legislative Assembly”.

#### **PART I**

See Art. 71(4), (5) & Eighth Schedule, sections 22 & 23.

*Subsection 1(2):* See section 22.

#### *Paragraph 1(2)(c)*

The words “Their Royal Highnesses” substituted for the words “Their Highnesses” by Act A31, section 2, in force from 24-03-1971.

#### *Paragraph 1(2)(d)*

The words “religion of Islam” substituted for the words “Muslim religion” by Act A354, section 45, in force from 27-08-1976.

*Subsection 1(1A):* Inserted by Act A885, paragraph 44(a), in force from 24-06-1994.

(1A) In the exercise of his functions under the Constitution of this State or any law or as a member of the Conference of Rulers, where the Ruler is to act in accordance with advice or on advice, the Ruler shall accept and act in accordance with such advice.

(2) The Ruler may act in his discretion in the performance of the following functions (in addition to those in the performance of which he may act in his discretion under the Federal Constitution) that is to say:

- (a) the appointment of a Menteri Besar;
- (b) the withholding of consent to a request for the dissolution of the Legislative Assembly;
- (c) the making of a request for a meeting of the Conference of Rulers concerned solely with the privileges, position, honours and dignities of Their Royal Highnesses or religious acts, observances or ceremonies;
- (d) any function as Head of the religion of Islam or relating to the custom of the Malays;
- (e) the appointment of an heir or heirs, consort, Regent or Council of Regency;
- (f) the appointment of persons to Malay customary ranks, titles, honours and dignities and the designation of the functions appertaining thereto;
- (g) the regulation of royal courts and palaces.

(3) State law may make provision for requiring the Ruler to act after consultation with or on the recommendation of any person or body of persons other than the Executive Council in the exercise of any of his functions other than—

- (a) functions exercisable in his discretion;
- (b) functions with respect to the exercise of which provision is made in the State Constitution or the Federal Constitution.

#### *Proceedings against the Ruler*

1A. (1) Where the Ruler is charged with an offence under any law in the Special Court established under Part XV of the Federal Constitution, he shall cease to exercise the functions of the Ruler of the State.

(2) During the period when the Ruler ceases, under subsection (1), to exercise the functions of the Ruler of the State, a Regent or a Council of Regency, as the case may be, shall be appointed in accordance with the State Constitution to exercise the functions of the Ruler of the State.

(3) Where the Ruler is convicted of an offence in the Special Court and sentenced to imprisonment for more than one day he shall cease to be the Ruler of the State unless he receives a free pardon.

#### *The Executive Council*

2. (1) The Ruler shall appoint an Executive Council.

# *Federal Constitution*

## *NOTES*

### **Eighth Schedule—(cont.)**

*Section 1A:* Added by Act A848, section 9, in force from 30-03-1993.

*Subsection 2(1):* See Art. 71(5) & Eighth Schedule, section 20.

*Paragraph 2(2)(b)*

The word “ten” substituted for the word “eight” by Act A919, subparagraph 2(a)(i), in force from 21-07-1995.

*Subsection 2(4):* See section 22.



(2) The Executive Council shall be appointed as follows, that is to say:

- (a) the Ruler shall first appoint as Menteri Besar to preside over the Executive Council a member of the Legislative Assembly who in his judgment is likely to command the confidence of the majority of the members of the Assembly; and
- (b) he shall on the advice of the Menteri Besar appoint not more than ten nor less than four other members from among the members of the Legislative Assembly,

but if an appointment is made while the Legislative Assembly is dissolved a person who was a member of the last Legislative Assembly may be appointed but shall not continue to hold office after the first sitting of the next Legislative Assembly unless he is a member thereof.

(3) Notwithstanding anything in this section, a person who is a citizen by naturalization or by registration under Article 17\* of the Federal Constitution shall not be appointed Menteri Besar.

(4) In appointing a Menteri Besar the Ruler may, in his discretion, dispense with any provision in the Constitution of this State restricting his choice of a Menteri Besar, if in his opinion it is necessary to do so in order to comply with the provisions of this section.

(5) The Executive Council shall be collectively responsible to the Legislative Assembly.

(6) If the Menteri Besar ceases to command the confidence of the majority of the members of the Legislative Assembly, then, unless at his request the Ruler dissolves the Legislative Assembly, he shall tender the resignation of the Executive Council.

(7) Subject to subsection (6), a member of the Executive Council other than the Menteri Besar shall hold office at the Ruler's pleasure, but any member of the Council may at any time resign his office.

(8) A member of the Executive Council shall not engage in any trade, business or profession connected with any subject or department for which he is responsible and shall not, so long as he is engaged in any trade, business or profession, take part in any decision of the Executive Council relating to that trade, business or profession or in any decision likely to affect his pecuniary interests therein.

### *Legislature of the State*

3. The Legislature of the State shall consist of the Ruler and one House, namely, the Legislative Assembly.

### *Composition of Legislative Assembly*

4. (1) The Legislative Assembly shall consist of such number of elected members as the Legislature may by law provide.

(2) (*Repealed*).

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\*NOTE—This Article has been repealed by section 5 of the Constitution (Amendment) Act 1962 [Act 14/1962] w.e.f. 1 July 1963—see L.N. 105/1963. See also notes on Article 17.

# *Federal Constitution*

## *NOTES*

### **Eighth Schedule—(cont.)**

#### *Section 3*

The words “namely, the” which appear after the words “one House” substituted for the words “to be known as the Dewan Negeri” by Act 26/1963, section 70, in force from 16-09-1963.

#### *Subsection 4(1)*

1. The words “and, until other provision is so made, the number of members shall be the number specified in Article 171 of the Federal Constitution” which appeared at the end of the section were deleted by Act 26/1963, section 70, in force from 16-09-1963.
2. *See* Art. 71(5), Eighth Schedule sections 19(5) & 21.

#### *Subsection 4(2)*

This subsection was added by Act 14/1962, paragraph 28(a), in force from 21-06-1962, and was repealed by Act A584, paragraph (4)(a), in force from 16-12-1983. It read as follows:

“(2) The number of elected members of the Legislative Assembly shall be the same as or a multiple of the number of the Federal constituencies into which the State is divided under Article 116 of the Federal Constitution.”.

#### *Section 5*

The words “eighteen years” substituted for the words “twenty-one years” by Act A1603, section 4, in force from 11-09-2019.